

#	Case Name	Tentative
26	Joslin vs. Fidelity National Law Group 24-01440293	1. Demurrer to Amended Complaint 2. Motion to Strike Portions of Complaint No Tentative Ruling. Parties to Appear on Zoom or in Person.
49	Covarrubias vs. C Plus Electronics, Inc. 25-01525830	Motion to Dismiss The Motion to Dismiss brought by Defendants C Plus Electronics, Inc. and Froilan Becerra is GRANTED in part, pursuant to Code of Civil Procedure section 410.30. This action shall be stayed, to permit Plaintiff to pursue litigation in Mexico. The request for a dismissal is denied. Defendants' Request for Judicial Notice is GRANTED, pursuant to Evidence Code section 452, subdivision (d). Plaintiff's Request for Judicial Notice is GRANTED, as to Exhibit 3, pursuant to Evidence Code section 452, subdivision (f). The remainder of Plaintiff's Request for Judicial Notice is DENIED, as irrelevant. While Exhibits 1 and 2 are court records which generally may be noticed pursuant to Evidence Code section 452, subdivision (d), the offered court records arise from an unrelated action. Plaintiff has not established that the documents are relevant to this motion. (Zucchet v. Galardi (2014) 229 Cal.App.4th 1466, 1474, fn. 5, citing Jordache Enterprises, Inc. v. Brobeck, Phleger & Harrison (1998) 18 Cal.4th 739, 748, fn. 6.) "When a court upon motion of a party or its own motion finds that in the interest of substantial justice an action should be heard in a forum outside this state, the court shall stay or dismiss the action in whole or in part on any conditions that may be just." (Code of Civ. Proc., §410.30, subd. (a).) "Forum non conveniens is an equitable doctrine invoking the discretionary power of a court to decline to exercise the jurisdiction it has over a transitory cause of action when it believes that the action may be more appropriately and justly tried elsewhere." (Stangvik v. Shiley Inc. (1991) 54 Cal.3d 744, 751.) "In determining whether to grant a motion based on forum non conveniens, a court must first determine whether the alternate forum is a 'suitable' place for trial. If it is, the next step is to consider the private interests of the litigants and the interests of the public in retaining the action for trial in California." (Ibid.) With respect to the first question of suitability, "[a]n alternative forum is suitable if it has jurisdiction and the action in that forum will not be